HAMATI TRUST
versus
PRISCILLA TIMBA

HIGH COURT OF ZIMBABWE
KATIYO J
HARARE; 3 March 2026

Opposed Matter

T S Manjengwa, for the applicant
R Kadani, for the respondent

KATIYO J

Introduction

This matter came before me as a special case in terms of Rule 52 of the High Court Rules, 2021. The parties, being co-owners in equal undivided shares of an immovable property known as Lot 2 of Brooke Estates, also known as 69 Hawkshead Drive, Philadelphia, Harare ("the property"), requested the Court to determine specific questions of law arising from their dispute.

The plaintiff instituted proceedings founded upon the *actio communi dividundo*, seeking division of the jointly owned property and ancillary relief in the form of compensation for the defendant's exclusive occupation thereof since September 2020.

The parties agreed upon a stated case and framed six questions of law for determination. I am indebted to counsel for their comprehensive heads of argument.

This judgment addresses those questions and, for the reasons that follow, resolves them in favour of the plaintiff. **The Applicable Legal Principles.**

The *actio communi dividundo* is deeply rooted in Roman-Dutch law. Its nature and scope were authoritatively articulated in *Robson* v *Theron*, where it was held that:

- No co-owner is obliged to remain in co-ownership against his will.
- The action lies for the division of joint property.

- It extends to ancillary claims relating to profits enjoyed or expenses incurred in connection with the joint property.
- The Court exercises a wide equitable discretion in determining the appropriate mode of division.

The same principles were reaffirmed in *Chisvo* v *The Sheriff of Zimbabwe NO and 4 Others,* where the Court emphasized that each co-owner may insist on partition at any time and, failing agreement, the Court will make an order that is fair and equitable, including physical division, buy-out, or sale.

It is therefore beyond dispute that the plaintiff is entitled, in principle, to seek partition and associated equitable relief.

Question (i): Whether the Court May Order Subdivision

The first question is whether this Court may order subdivision of the property in light of the Regional, Town and Country Planning Act [*Chapter 29:12*].

The defendant argued that subdivision falls within the prerogative of the planning authority and that the Court cannot encroach upon that statutory discretion.

It is correct that subdivision requires compliance with statute. However, the issue is not whether this Court may usurp the planning authority's function, but whether it may order that subdivision be pursued subject to statutory approval.

In *Fernandes* v *Fernandes*, the Court held that where subdivision is properly pleaded and desirable, the Court may grant such relief subject to the requirements of the local planning authority. Similarly, in *Bennet NO* v *Le Roux*, the Court affirmed that where partition can be effected physically and legally, and is not inequitable, it ought to be granted.

I am satisfied that subdivision is both physically possible and legally permissible, subject to statutory approval. Nothing before me suggests that subdivision would be impracticable, uneconomical, or prohibited.

This Court will not order the planning authority to approve subdivision. However, consistent with *Fernandes*, it may order that the parties apply for subdivision, subject to compliance with [*Chapter 29:12*].

Accordingly, Question (i) is answered in the affirmative.

Questions (ii) and (iii): Buy-Out and Equitable Period

These questions arise in the alternative.

Should subdivision not ultimately be approved, the Court must determine whether one party should buy out the other and within what period.

The equitable discretion described in *Robson* and *Bennet* allows the Court to award the property to one co-owner subject to payment of compensation to the other.

The real dispute concerns the time period. The defendant proposes 24 months. The plaintiff proposes 3 months.

The evidence is clear that:

- The defendant has enjoyed exclusive occupation since September 2020.
- The plaintiff has derived no benefit from the property.
- The defendant has long indicated an intention to purchase but has not done so.

To grant a further 24 months would effectively entrench the defendant's exclusive enjoyment for close to five years without equitable adjustment. That would be manifestly unjust.

The Court's discretion must be exercised judicially and equitably. In the circumstances, 90 days is fair and reasonable.

Accordingly:

- If subdivision fails, the defendant shall have 90 days to purchase the plaintiff's undivided half share at the agreed or valued price.
- Failing that, the plaintiff shall have 90 days to purchase the defendant's share.
- Failing both, the property shall be sold by private auction and proceeds divided equally, subject to set-off.

Question (v): Claim for Value of Occupation

The *actio communi dividundo* includes claims for *praestationes personales*. In *Robson* v *Theron*, it was made clear that a co-owner may claim profits enjoyed in connection with joint property.

In *Bakaris* v *Kattavenos*, the Court confirmed that the action entails not only partition but adjustment of claims arising from disproportionate enjoyment.

The defendant has resided exclusively in the property since September 2020. She thereby enjoyed the benefit of occupation equivalent to rental value, notwithstanding owning only 50%.

That constitutes a benefit derived from joint property.

It is therefore just that the plaintiff be compensated for half of the fair monthly rental value from September 2020 until:

- transfer of a subdivided portion to the plaintiff; or
- buy-out payment; or
- sale and distribution of proceeds; whichever occurs first.

The valuation already directed by this Court shall determine the monthly figure.

Question (v) is answered in the affirmative.

Question (vi): Costs

The general rule is that costs follow the event. This principle was reaffirmed in *Svova & Others* v *National Social Security Authority.*

The plaintiff has succeeded on the substantive questions of law and on the claim for occupation value.

There is no basis to depart from the general rule.

The defendant shall pay the plaintiff's costs of suit.

Order

Accordingly, it is ordered that:

1. The immovable property known as Lot 2 of Brooke Estates (also known as 69 Hawkshead Drive, Philadelphia, Harare) may be subdivided appropriately and equitably between the parties, subject to compliance with the Regional, Town and Country Planning Act [*Chapter 29:12*].
2. The parties shall take all necessary steps to apply for subdivision approval.
3. In the event subdivision is not approved:

- (a) The defendant shall have 90 days to purchase the plaintiff's undivided half share at the agreed or determined value.
- (b) Failing such purchase, the plaintiff shall have 90 days to purchase the defendant's share.
- (c) Failing both, the property shall be sold by private auction and the proceeds divided equally, subject to set-off.

4. The defendant shall pay to the plaintiff 50% of the fair monthly rental value of the property from September 2020 to the date of final transfer, buy-out, or sale, whichever occurs first. The monthly value shall be as determined by the appointed valuer.

5. No order as costs.

KATIYO J:…….

Wintertons, applicant's legal practitioners
Atherstone and Cook, respondent's legal practitioners